

vide full, unaltered context. Any such evidence should be excluded under **Evidence Code § 352** as **misleading, cumulative, and unduly prejudicial**.

The California courts have repeatedly held that parties cannot engage in **trial by ambush**. In *Kennedy v. Superior Court* (1998) 64 Cal.App.4th 674, the court ruled that failing to disclose substantive evidence, including surveillance footage, during discovery **prevents** its introduction at trial. Similarly, in *Jones v. City of Los Angeles* (2019) 34 Cal.App.5th 615, the court found that any **video evidence intended for impeachment purposes must be properly disclosed in advance**, failing which it must be excluded.

CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that the Court issue an order:

1. Excluding any “Day in the Life” video or surveillance footage not properly disclosed;
2. Excluding any surveillance footage obtained **after** the discovery cut-off;
3. Prohibiting Defendant from referring to, introducing, or discussing any such video or footage before the jury.

Plaintiff further requests that if Defendant intends to use any such evidence, it must first be **authenticated outside the presence of the jury** with a showing of compliance with **discovery obligations**.

Respectfully submitted,

Dated: February 26, 2025
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